

2021 P L C (C.S.) 104

[Lahore High Court]

Before Jawad Hassan, J

KHALID HUSSAIN and others

Versus

The INSPECTOR GENERAL PUNJAB POLICE and others

Writ Petition No.57052 of 2020, decided on 6th November, 2020.

(a) Civil service---

---Appointment to advertised post---Scope---Petitioner assailed objection raised in the rejection list whereby his application for appointment was rejected on the ground of being over-aged---Validity---Ex-army personnel could apply for the post, however their age must not be above forty years whereas the date of birth of petitioner as per his CNIC was about forty three years and he did not meet with the requisite requirement of the advertisement---Constitutional petition was dismissed.

Mati Ullah and another v. Khyber Pakhtunkhwa Public Service Commission, Peshawar through Chairman and 5 others 2020 PLC (C.S.) Note 28 and Waqas Aslam and 2 others v. Lahore Electric Supply Company (LESCO) through Chief Executive and 4 others 2018 PLC (C.S.) 243 distinguished.

(b) Civil service---

---Appointment to advertised post---Scope---Petitioner assailed objection raised in the rejection list whereby his application for appointment was rejected on the ground of non-attaching his CNIC with the application---Validity---Petitioner had only attached acknowledgement receipt of the application form with the petition but had not attached the application form along with attested photocopy of the CNIC---Constitutional petition was dismissed.

Mati Ullah and another v. Khyber Pakhtunkhwa Public Service Commission, Peshawar through Chairman and 5 others 2020 PLC (C.S.) Note 28 and Waqas Aslam and 2 others v. Lahore Electric Supply Company (LESCO) through Chief Executive and 4 others 2018 PLC (C.S.) 243 distinguished.

(c) Civil service---

---Appointment to advertised post---Scope---Court cannot prescribe the eligibility or experience qualifications and work experience in assessment of suitability of a particular nature of job and its scope in the context of a particular employer.

(d) Constitution of Pakistan---

---Art.199---Constitutional jurisdiction---Policy decision of government---Interference---Scope---High Court cannot interfere in the policy matters of a department---High Court cannot embark upon an inquiry as to whether a particular policy is wise and acceptable or whether better policy can be drafted---High Court can interfere if the policy framed is absolutely capricious and non-informed by reasons or totally arbitrary, offending the basic requirement of the Constitution---Department has to decide how and in what manner the reservation should be made and such a policy decision normally will not be open to challenge subject to its passing the test of reasonableness.

The Secretary Punjab Public Service Commission, Lahore and others v. Aamir Hayat and others 2019 SCMR 124 and M. Nazir Ahmad v. Muhammad Aslam and others 2013 SCMR 363 rel.

Raja Ijaz Ahmad for Petitioners.

Barrister Hassan Khalid Ranjha, A.A.G. on Court's Call.

ORDER

JAWAD HASSAN, J.---The Petitioners have invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") with the prayer that the Respondents be directed to consider their applications for appointment and objection raised in rejection list be also recalled.

2. Facts of the case are that the Petitioners applied for the post of Constable in Punjab Police. Application of the Petitioner No.1 was rejected being overage while that of Petitioner No.2 due to non-attaching of his CNIC. Hence this petition.

3. Learned counsel for the Petitioners inter alia contended that imposition of the conditions viz. forty years of current age as well as retirement period under two years for the candidates of ex-army persons has been imposed which is not sustainable in law; that the Petitioner No.2 properly attached the requisite documents with the application but the Respondents themselves have misplaced as such no fault could be attributed to the said Petitioner; that the Respondents have not properly calculated the age of the Petitioner No.1, as such their fundamental rights of equality have been infringed. The counsel for the Petitioners has relied on "Mati Ullah and another v. Khyber Pakhtunkhwa Public Service Commission, Peshawar through Chairman and 5 others" (2020 PLC (C.S.) Note 28) and "Waqas Aslam and 2 others v. Lahore Electric Supply Company (LESCO) through Chief Executive and 4 others" (2018 PLC (C.S.) 243).

4. On the other hand, learned Law Officer objected to maintainability of the petition.

5. I have heard the arguments and perused the record.

6. The facts of the case in brief are that the Petitioners in response to advertisement flashed by the Respondents applied for the posts of Constable in Punjab Police however, application of the Petitioner No.1 was rejected due to over age whereas the application of the Petitioner No.2 was rejected due to non-provision of CNIC.

7. Perusal of advertisement attached with this petition stipulates as under:

8. It is manifestly clear from the above requirement that ex-army man can apply for the post of Constable however, their age must not be above forty years. The date of birth of the Petitioner No.1, as per his CNIC attached with this petition, is 15.05.1977 and he enrolled in the Pakistan Army on 05.05.1996 whereas he was retired from service on 05.05.2019 which shows that he is about forty-three years old and does not meet with the requisite requirement of the advertisement.

9. So far as the grievance of the Petitioner No.2 is concerned, though the date of advertisement has not been mentioned by the Petitioners yet the applications were to be submitted between 12.10.2020 to 26.10.2020. Copy of CNIC attached with this petition clearly reflects that the same was issued on 23.10.2020. Stance of the Petitioner No.2 is that he submitted application along with all documents to the Respondents on 24.10.2020 but the Respondents misplaced it. It is to be noted that he has only attached acknowledgment receipt but has not attached the application form along with attested photocopy of the CNIC, the requirement as per terms and conditions of advertisement, to show that he possessed his CNIC at the time of submission of application.

10. In assessment of suitability of a particular nature of job and its scope in the context of particular employer the Courts cannot prescribe the eligibility or experience qualifications and work experience as these are matters of policy and best be left to the department. As it is a policy matter, this Court cannot interfere into the policy matters of the Department. It is not in the domain of the Courts to embark upon an inquiry as to whether a particular policy is wise and acceptable or whether better policy could be drafted. The Court can only interfere if the policy framed is absolutely capricious and non-informed by reasons, or totally arbitrary, offending the basic requirement of the Constitution. It was for the Department to decide how and in what manner the reservations should be made and such a policy decision normally would not be open to challenge subject to its passing the test of reasonableness. The Hon'ble Supreme Court of Pakistan in "The Secretary Punjab Public Service Commission, Lahore and others v. Aamir Hayat and others" (2019 SCMR 124) has held that "courts could not interfere in lawful exercise of discretion by the concerned departments and substitute lawful decisions

of the departments, by their own". In case of "M. Nazir Ahmad v. Muhammad Aslam and others "(2013 SCMR 363) it was held that "An employer has the discretion to formulate appropriate policy viz-a-viz job qualification and criteria for various positions in line with its peculiar requirements and organizational structure hence no person had a vested right to be appointed on a post rather the authorities made a selection for the post as per criteria set out in Rules/policy and had to find the most suitable candidate for the job who could capably discharge the duties".

11. Moreover, the judgments referred by the learned counsel for the Petitioners cannot be relied upon being distinguishable from the facts and circumstances of the case as each and every case has its own merits. In view of above, this petition is dismissed in limine.

SA/K-11/L

Petition dismissed.